

Court No. - 3

Case :- WRIT - C No. - 14806 of 2006

Petitioner :- M/S Dev Cold Storage Pvt. Ltd.

Respondent :- Dakshinachal Vidyut Vitran Nigam Limited And Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- W.H. Khan,S.C.

Hon'ble Shekhar B. Saraf,J.

Hon'ble Praveen Kumar Giri,J.

On the request of learned counsel appearing on behalf of the petitioner, list this matter on July 25, 2025.

Order Date :- 18.7.2025

Kuldeep

(Praveen Kumar Giri, J.) (Shekhar B. Saraf, J.)



2025:AHC:164042-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 14806 of 2006

M/S Dev Cold Storage Pvt. Ltd.

.....Petitioner(s)

Versus

Dakshinachal Vidyut Vitran Nigam Limited And
Others

.....Respondent(s)

Counsel for Petitioner(s)	:	Bidhan Chandra Rai
Counsel for Respondent(s)	:	W.H. Khan, S.C.

With

WRIT - C No. - 59150 of 2007

M/S Dev Cold Storage Pvt. Limited

.....Petitioner(s)

Versus

DvvnI And Another

.....Respondent(s)

Counsel for Petitioner(s)	:	B.C. Rai
Counsel for Respondent(s)	:	Rajesh Tripathi, Baleshwar Chaturvedi

Court No. - 3

HON'BLE SHEKHAR B. SARAF, J.
HON'BLE PRAVEEN KUMAR GIRI, J.

1. The prayer in the Writ - C No.14806 of 2006 is as follows :

"a) a writ, order or direction in the nature of writ of certiorari quashing the revised assessment order/ bill dated 17.12.2005 and consequential demand notice dated 20.12.2005 (Annexure No.9 & 10 to the writ petition) issued by the respondent No.3 in purported exercise of power under Section 135 Electricity Act, 2003 read with clause 6.8 (c) of Electricity Supply Code, 2005;

b) Issue writ, order direction in the nature of mandamus declaring Clause 8.2 (iv) of Electricity Supply Code, 2005 as ultra vires of section 126 (6) to the Electricity Act, 2003;

c) To issue a writ, order or direction in the nature of writ of mandamus restraining the respondents from recovering sum in question from the petitioner in any manner including by coercive process;"

2. The prayer in the Writ-C No.55908 of 2007 is as follows:

"a) a writ, order or direction in the nature of writ of certiorari quashing the revised assessment demand bill and order dated 1.9.2007 and 3.9.2007 (Annexure Nos.8 & 9 to the writ petition) raised by the Respondent No.2 in purported exercise of power under Section 135 of the Act of 2003;

b) issue a writ, order or direction in the nature of writ of mandamus restraining the Respondents from disconnecting power supply and recovering sum in question from the petitioner in any manner including by coercive process;

c) issue such other and further writ, order or direction which this Hon'ble Court may deem fit and proper in the circumstances of the case;"

3. We have heard learned counsel appearing for the parties and perused the material on record.

4. It is to be noted that the revised assessment order dated 17.12.2005, consequential demand notice dated 20.12.2005 (Writ - C No.14806 of 2006) and the revised assessment order dated 3.9.2007 and revised assessment bill dated 1.9.2007 (Writ-C No.59150 of 2007) have been passed.

5. From perusal of record it appears that in the first writ petition, the Executive Engineer (Revenue) has passed the order. Learned counsel for petitioners submits that only Executive Engineer (Distribution) has the power to pass assessment order. In our view the power was not with the Executive Engineer (Revenue) to pass the assessment bill and the demand notice and the power lies with the Executive Engineer (Distribution). Accordingly, the writ petition is **allowed** and the impugned order and demand notice are quashed and set aside.

6. The challenge in the second writ petition is with regard to the revised assessment order passed by the Executive Engineer (Distribution). With regard to the revised assessment order passed in 2007, the writ petition is

allowed granting the liberty to the writ petitioner to file appeal against the said revised assessment order and revised assessment bill within a period of four weeks from date without payment of any pre deposit as substantial amount has already been deposited by the petitioner. The authorities are directed to grant an opportunity of hearing and thereafter passed a reasoned order in accordance with law within a period of eight weeks from the date of filing of the said appeal. The other prayers in the aforesaid writ petitions have not been pressed by the writ petitioners.

(Praveen Kumar Giri,J.) (Shekhar B. Saraf,J.)

September 15, 2025

Md Faisal